

Court No. - 3

Case :- WRIT - C No. - 36652 of 2023

Petitioner :- M/S Bismillah Rice Mill

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar Dubey

Counsel for Respondent :- CSC,Mukesh Kumar Singh

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Even though the petitioner has challenged the impugned notice dated 10.04.2021 issued by respondent no.2 by which the petitioner was required to pay a sum of Rs.3,22,89,032/-, he is confining his prayer only to the extent that the court may grant the petitioner the facility of paying in instalments.

Sri Mukesh Kumar Singh, learned counsel for the Electricity Department states that the petitioner can always avail the opportunity to pay the amount in instalments and for this purpose he may move an application under Clause 6.14 of the Electricity Supply Code, 2005.

Under such circumstances, we refrain from interfering in the writ petition. We, however, direct that if the petitioner approaches the respondent no.2 with a prayer for fixing instalments, within a period of ten days, then the case of the petitioner shall be considered in accordance with the provisions of Clause 6.14 of the Electricity Supply Code, 2005 expeditiously.

If the petitioner pays a sum of Rs.3,22,89,032/-, the electricity shall be restored.

In view of above observations, this writ petition is disposed of.

Order Date :- 1.11.2023

Raj